

UNITED STATES DISTRICT COURT
SOUTHERN DISTRICT OF NEW YORK

14 CV 7721

FIRST AMENDED COMPLAINT

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JURY TRIAL DEMANDED

CHRISTINA GONZALEZ,

ECF CASE

PLAINTIFFS,

vs.

CITY OF NEW YORK, NYPD Patrol
Officers DIONIS BRAVO Shield 04683;
EMMANUEL COLLADO, Shield 120;
RICHARD HALL, 32nd Precinct; SGT.
COLLEEN WALSH, 19th Precinct;
DAVID GONZALEZ, Shield 17332;
SGT. ADAM KASZOVITZ, TBDT23;
EUGENE MASCARI; ANGELA
NIEVES, Manhattan North Task Force;
SGT. LISSETT NIEVES, Manhattan North
Task Force; MEDINA Shield 5939; and
NYPD Officer DOES 1, 2, and 4-8,

Defendants.

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TABLE OF CONTENTS

Preliminary Statement	3
Jurisdiction and Venue	4
Jury Demand	4
Parties	5
Statement of Facts	6
I. September 24, 2011 Arrest	6
II. January 1, 2012 Arrest	13
III. June 17, 2012 Arrest	15
IV. July 31, 2012 Arrest	19
V. City Policy	21
First Claim for Relief (Individual Officer Defendants)	24
Second Claim for Relief (Municipal Defendant)	26
Prayer for Damages	29
Index of Exhibits	31

PLAINTIFF Christina Gonzalez, by her attorney, Paul L. Mills, Esq., for this First Amended Complaint, complaining of the defendants, respectfully alleges as follows:

FIRST AMENDED COMPLAINT

(U.S. Constitutional 1st and 4th Amendments

Civil Rights 42 U.S.C. § 1983 Lawsuit)

PRELIMINARY
STATEMENT

1. The claims filed in th is case might have been brought by any number of political activists in Manhattan during the period of 2011-2014. The claims arose from a policy of rights violations by the City of New York through its New York Police Department, a policy denominated herein as the “Public Speech Suppression Policy”. The purpose of this policy was to stifle political protest. It consisted principally of making false arrests and using excessive force against citizens exercising their freedom of speech and assembly in public spaces, and comprised a single continuing tort in violation of the U.S. Constitution 1st and 4th Amendments. The video evidence attached as Exhibit 1 depicts that policy, whereby lawful

demonstrators, threatening no harm to anyone, were subjected to unlawful arrest, using unnecessary force, by the police.

JURISDICTION AND VENUE

2. This action arises under the First and Fourth Amendments to the United States Constitution and under 42 U.S.C. §§ 1983 and 1988.

3. The jurisdiction of this Court is predicated upon 28 U.S.C. §§ 1331 (federal question), and 1343 (federal civil rights).

4. The Southern District of New York is the proper venue for this lawsuit because the cause of action arose in New York County, in the State of New York. The acts complained of occurred in the City of New York and in the Southern District of New York. Venue is lodged in this Court pursuant to 28 U.S.C. § 1391(b).

JURY DEMAND

5. PLAINTIFF demands trial by jury in this action on all issues so triable.

PARTIES

6. Plaintiff Christina Gonzalez is a citizen and resident of the United States of America, and at all times relevant herein was a resident of the State of New York, Kings County.

7. Defendant CITY OF NEW YORK is a municipal corporation which, through its New York Police Department (“NYPD”) operates a number of subordinate law enforcement facilities. The NYPD, through its senior officials, in each facility, and in its specialized units, promulgates and implements policies, including those with respect to the searches, arrests, and processing of pretrial detainees, and the reporting and investigation of lawful and unlawful arrests and processing of pretrial detainees, by uniformed officers including the individual NYPD officers who are defendants in this action. In addition, senior officials in the NYPD are aware of and tolerate certain practices by subordinate officers, including some that are inconsistent with formal or stated policy. These practices, because they are widespread, long-standing, and deeply embedded in the culture of the agency, constitute unwritten NYPD policies, practices and customs.

8. At all times relevant hereto, each Defendant NYPD Patrol Officer, whether identified herein by name and/or shield number, or referred to as DOES and identified herein by the attached photographs and digital video disc (“DVD”) video-recordings, was a sworn and appointed patrol officer of the NYPD, acting in

the capacity of agent, servant, and employee of Defendant CITY OF NEW YORK, within the scope of their employment as such, and acting under color of state law. Each such individual Defendant NYPD Patrol Officer is sued in their individual capacity.

9. At all times relevant hereto, each of the Defendant NYPD Patrol Officers, whether referred to by name, shield number, or as DOES (NYPD Officers whose names and shield numbers are not yet known to Plaintiff, but whom Plaintiff specifically identifies through DVD video-recordings and photographs of them attached as exhibits hereto) were present during, ordered, participated in, or assisted in Plaintiff's arrests as set forth in this First Amended Complaint; was a sworn and appointed patrol officer of the NYPD, acting in the capacity of agent, servant, and employee of Defendant CITY OF NEW YORK, within the scope of their employment as such; and was acting under color of state law.

STATEMENT OF FACTS

I. September 24, 2011 Arrest

Defendants CITY OF NEW YORK and NYPD Officers Dionis Bravo, Shield #04683 and DOE 1 (Exhibits 1 and 3), DOE2 (Exhibits 1 and 4), Emmanuel Collado, Shield 120 [previously identified as DOE 3 (Exhibits 1 and 5)], Richard Hall, 32nd Precinct, Sgt. Colleen Walsh, 19th Precinct,

and DOE 4, (Exhibits 1 and 6).

10. On September 24, 2011 at about 2 PM at and near the intersection of University Place and E. 12th Street in the County and State of New York, Plaintiff was engaged in peaceful U.S. Constitution 1st Amendment protest activity, marching with others on a public street in compliance with all lawful orders of the police.

11. At that time, Plaintiff was observing and video-recording the public conduct of uniformed police.

12. Plaintiff was doing so without obstructing or interfering with said police.

13. Defendant DOE 1, who appears in the video-recording attached to this First Amended Complaint and incorporated as Exhibit 1, and whose photographs are attached to this First Amended Complaint and incorporated as Exhibit 3A-3C, commanded individual patrol officers.

14. Said patrol officers at that time were waiting in the vicinity for instructions as to what action to take, watching demonstrators.

15. At that time, Defendant DOE 1 ordered said patrol officers to arrest Plaintiff, for no lawful reason, as any properly-trained reasonable law enforcement officer would know under the totality of the circumstances.

16. Defendant DOE 2 appears in the video-recording attached to this First Amended Complaint and incorporated as Exhibit 1, and in photographs attached as

Exhibits 4A-4F to this First Amended Complaint.

17. Defendant DOE 2, in compliance with the command of Defendant DOE 1, ran forward to reach Plaintiff.

18. Defendant DOE 2 contacted Plaintiff from behind, pulling down on a sports bra that she was wearing.

19. In so doing, Defendant DOE 2 used force in a manner and to a degree that was not necessary for any lawful purpose, as any properly-trained reasonable law enforcement officer would know under the totality of the circumstances.

20. Defendant DOE 2 then seized Plaintiff and, together with Defendant NYPD Officer Dionis Bravo, Shield #04683, placed her in restraints and arrest, without probable cause to believe she had committed a crime, as any properly-trained reasonable law enforcement officer would know under the totality of the circumstances, under the supervision of Defendant NYPD Sgt. Colleen Walsh, 19th Precinct.

21. The arrest described in the preceding paragraphs (the “9/24/11 ARREST”) was effected using force in a manner and to a degree that was not necessary for the purpose of arresting or restraining the Plaintiff, as any properly-trained reasonable law enforcement officer would know under the totality of the circumstances.

22. Defendant Emmanuel Collado, Shield 120 [previously identified as DOE 3] and DOE 4 appear in video-recorded Exhibit 1, and their photographs are

attached as Exhibits 5A-5C (DOE 3), and 6A-6C (DOE 4).

23. After Plaintiff's arrest as set forth above, and after her wrists were restrained behind her back, Defendant Emmanuel Collado, Shield 120 [previously identified as DOE 3] and DOE 4 repeatedly attempted to propel Plaintiff head-first toward the pavement over another officer's extended leg, by suddenly applying downward force with their arms and hands to the back of her neck, so that she would helplessly trip and fall, with her own arms and hands restrained behind her, to land on the pavement, causing injury to her knees or upper body.

24. This use of force as described above was not in a manner or degree lawfully necessary to arrest or retain the Plaintiff in custody, as any properly-trained reasonable law enforcement officer would know under the totality of the circumstances.

25. The 9/24/11 ARREST and uses of force as described above were in retaliation for the exercise by Plaintiff of her 1st Amendment right to observe and record the activities of the police and express political opinions verbally and by her physical presence in a lawful, peaceful assembly, and were intended to discourage her from doing so ever again.

26. The 9/24/11 ARREST and uses of force as described above in fact prevented Plaintiff from engaging in lawful activity protected by the U.S.

Constitution 1st Amendment by forcibly removing her from the 1st Amendment

group activity in which she was participating, expressing herself, and assembling with others for the redress of grievances and to express political opinions.

27. Furthermore, the 9/24/ 11 ARREST and uses of force as described above were such as would chill a person of ordinary firmness from continuing to engage in said U.S. Constitution 1st Amendment activity.

28. Thereafter Defendant DOES 1-4 and NYPD Officer Dionis Bravo, Shield #04683 placed Plaintiff in over-tight wrist restraints which were intended to and did cause her pain and injury and were left on for 15 minutes until the cries of Plaintiff and other arrestees led to the arresting officers' loosening the wrist restraints.

29. The use of wrist restraints in said fashion was a use of force in a manner and to a degree not reasonably necessary to maintain her in custody, as any properly-trained reasonable law enforcement officer would know under the totality of the circumstances.

30. Thereafter Defendant DOES 1, 2, NYPD Officer Emmanuel Collado, Shield 120 [previously identified as DOE 3], NYPD Officer Richard Hall, 32nd Precinct, NYPD Sgt. Colleen Walsh, 19th Precinct, and DOE 4 and NYPD Officer Dionis Bravo, Shield #04683 purposely caused Plaintiff to be held in an unventilated and overheated van for 5-6 hours, deprived of food, water, or facilities to relieve themselves, causing physical and emotional distress to Plaintiff.

31. Plaintiff was ultimately released 8 hours after her false arrest.

32. Plaintiff's imprisonment was intended to and did prevent her from exercising her U.S. Constitution 1st Amendment rights as described above by keeping her in jail during a lawful protest demonstration when she would otherwise have been free to exercise her 1st Amendment rights lawfully and in public as described above, and, furthermore, would chill a person of ordinary firmness from continuing to engage in that activity.

33. The 9/24/11 ARREST and uses of force as described above in fact prevented Plaintiff from engaging in lawful activity protected by the U.S. Constitution 1st Amendment by forcibly removing her from the 1st Amendment group activity in which she was participating, expressing herself, and assembling with others for the redress of grievances and to express political opinions.

34. Furthermore, The 9/24/11 ARREST and uses of force as described above were such as would chill a person of ordinary firmness from continuing to engage in that activity.

35. Following court proceedings, the criminal action against Plaintiff, Docket No. 2011NY077647, was terminated in her favor and without conviction.

36. The arrest, imprisonment and use of force by Defendant DOES 1, 2, Emmanuel Collado, Shield 120 [previously identified as DOE 3], Richard Hall, 32nd Precinct, and DOE 4 and Bravo as described above, foreseeably and directly caused the Plaintiff to suffer discomfort, physical and emotional pain and distress, including humiliation, fear, frustration, and anger.

37. The arrest, imprisonment, force, and identity concealment described above in connection with the 9/24/11 ARREST were the result of a continuing policy of the Defendant CITY OF NEW YORK to stifle 1st Amendment activity by the continuous violation of the rights of lawful demonstrators, including Plaintiff, under the 1st and 4th Amendments to the U.S. Constitution, formulated and implemented at some time prior to September 24, 2011 and continuing to a date after July 31, 2012, (hereafter, the “Public Speech Suppression Policy”), as described in *Suppressing Protest: Human Rights Violations in the U.S. Response to Occupy Wall Street*, The Global Justice Clinic (NYU School of Law) and the Walter Leitner International Human Rights Clinic at the Leitner Center for International Law and Justice (Fordham Law School) (July 25, 2012), attached as Exhibit 11 to this First Amended Complaint in digital file format on a DVD, and as set forth in this and other civil rights actions filed against Defendant CITY OF NEW YORK, including *Peat v. City of New York*, 12-cv-8230, filed in the Southern District of New York on November 13, 2012, Amended Complaint attached as Exhibit 12 to this First Amended Complaint in digital file format on a DVD, and *Garcia v. Bloomberg*, 11 CIV 6957, Second Amended Complaint attached as Exhibit 13 to this First Amended Complaint in digital file format on a DVD.

II. January 1, 2012 Arrest

Defendants CITY OF NEW YORK and
NYPD Officers DAVID GONZALEZ Shield 17332, Sergeant Adam Kaszovitz
TBDT23 and EUGENE MASCARI

38. On January 1, 2012, at about 1:30 A.M. at and near the intersections of Broadway and Canal Street, and Broadway and Grand Street, in the Borough of Manhattan, Plaintiff was engaged in peaceful protest activity, marching with others on a public sidewalk in compliance with all lawful orders of the police.

39. At that time, NYPD police escorted Plaintiff and other demonstrators, thereby granting them permission to march along the sidewalk, and failing to give them fair warning of the alleged unlawfulness of doing so, in a manner substantially similar to that set forth in *Peat v. City of New York*, 12-cv-8230, Amended Complaint attached as Exhibit 12 hereto in digital file format on a DVD, at ¶¶ 45-52; and that set forth in *Garcia v. Bloomberg* (11-cv-6957), Second Amended Complaint attached as Exhibit 13 hereto in digital file format on a DVD, at ¶¶ 78-86.

40. Thereafter, NYPD began making random arrests for no lawful reason, as any properly-trained reasonable law enforcement officer would know under the totality of the circumstances.

41. Defendant NYPD Officer DAVID GONZALEZ, Shield 17332 and NYPD Officer EUGENE MASCARI, supervised by Defendant Sergeant ADAM KASZOVITZ TBDT23, seized Plaintiff and slammed her against a wall, then placed her in restraints and arrest, without probable cause to believe she had committed a crime, as any properly-trained reasonable law enforcement officer would know under the totality of the circumstances.

42. The arrest described in the preceding paragraph (the “1/1/12 ARREST”) was effected using force in a manner and to a degree not reasonably necessary to arrest or detain Plaintiff, as any properly-trained reasonable law enforcement officer would know under the circumstances.

43. The 1/1/12 ARREST and use of force as described above were in retaliation for the exercise by Plaintiff of her 1st Amendment right to express political opinions verbally and by her physical presence in a lawful, peaceful assembly, and were intended to discourage her from doing so ever again.

44. The 1/1/12 ARREST and uses of force as described above in fact prevented Plaintiff from engaging in lawful activity protected by the U.S. Constitution 1st Amendment by forcibly removing her from the 1st Amendment group activity in which she was participating, expressing herself, and assembling with others for the redress of grievances and to express political opinions.

45. Furthermore, said arrest and uses of force were such as would chill a person of ordinary firmness from continuing to engage in that activity.

46. Plaintiff was ultimately released 6 hours after her false arrest.

47. Plaintiff's imprisonment was intended to and did prevent her from exercising her 1st Amendment rights as described above by keeping her in jail during a lawful protest demonstration when she would otherwise have been free to exercise her 1st Amendment rights lawfully and in public as described above.

48. Furthermore, Plaintiff's imprisonment would chill a person of ordinary firmness from continuing to engage in said 1st Amendment activity.

49. Following court proceedings, the criminal action against Plaintiff, Docket No. 2012NY013844, was terminated in her favor and without conviction.

50. The false arrest, false imprisonment and use of excessive force by Defendants GONZALEZ and MASCARI as described above, foreseeably and directly caused the Plaintiff to suffer discomfort, physical and emotional pain and distress, including humiliation, fear, frustration, and anger.

51. The false arrest, false imprisonment, excessive force, and identity concealment, and violation of U.S. Constitution 1st and 4th Amendment rights described above in connection with the 1/1/12 ARREST were the intended, direct and foreseeable result of the Public Speech Suppression Policy of the Defendant CITY OF NEW YORK

III. June 17, 2012 Arrest

Defendants CITY OF NEW YORK, NYPD Officers Angela Nieves, Manhattan

North Task Force, Sergeant Lissett Nieves, Manhattan North Task Force, and NYPD Officer DOE 5 (Exhibits 2 and 7), DOE 6 (Exhibits 2 and 8), DOE 7 (Exhibits 2 and 9), and DOE 8 (Exhibits 2 and 10)

52. On June 17, 2012 at an d near 5th Avenue and 78th Street, in the County and State of New York, Plaintiff was engaged in peaceful protest activity, marching with others on a public street in compliance with all lawful orders of the police.

53. At that time, Plaintiff was observing and video-recording the conduct of uniformed police using excessive force to effect the arrest of another demonstrator.

54. Defendant DOES 5-8 appear in the video-recording attached to this First Amended Complaint and incorporated as Exhibit 2 in digital file format on a DVD, and their photographs are attached as Exhibits 7A-7H (DOE 5); 8A-8C (DOE 6); 9A-9D (DOE 7), AND 10A-10C (DOE 8) to this First Amended Complaint.

55. At that time, DOES 5-8, and NYPD Officer Angela Nieves, Manhattan North Task Force, under the supervision of Sergeant Lissett Nieves, Manhattan North Task Force, seized Plaintiff and placed her in restraints and arrest, without probable cause to believe she had committed a crime, as any properly-trained reasonable law enforcement officer would know under the totality of the circumstances.

56. Thereafter, Defendant DOES 5-8 and NYPD Officer Angela Nieves, Manhattan North Task Force placed Plaintiff in over-tight wrist restraints which were intended to and did cause her pain and injury and were left on for 35 minutes.

57. The use of wrist restraints in said fashion was a use of force in a manner and to a degree not reasonably necessary to maintain her in custody, as any properly-trained reasonable law enforcement officer would know under the totality of the circumstances.

58. The 6/17/12 ARREST and use of restraints described above was in retaliation for the exercise by Plaintiff of her 1st Amendment right to observe and record the activities of the police and express political opinions verbally and by her physical presence in a lawful, peaceful assembly, and were intended to discourage her from doing so ever again.

59. The 6/7/12 ARREST and use of restraints as described above in fact prevented Plaintiff from engaging in lawful activity protected by the U.S. Constitution 1st Amendment by forcibly removing her from the 1st Amendment group activity in which she was participating, expressing herself, and assembling with others for the redress of grievances and to express political opinions.

60. Furthermore, said arrest and use of restraints were such as would chill a person of ordinary firmness from continuing to engage in said U.S. Constitution 1st Amendment activity.

61. Plaintiff was ultimately released more than 24 hours after her false arrest.

62. Plaintiff's imprisonment was intended to and did prevent her from exercising her 1st Amendment rights as described above by keeping her in jail

during a lawful protest demonstration when she would otherwise have been free to exercise her U.S. Constitution 1st Amendment rights lawfully and in public as described above.

63. Furthermore, said imprisonment would chill a person of ordinary firmness from continuing to engage in said 1st Amendment activity.

64. Following court proceedings, the criminal action against Plaintiff, Docket No.2012NY047654, was terminated in her favor and without conviction.

65. Plaintiff's imprisonment was intended to and did prevent her from exercising her 1st Amendment rights as described above by keeping her in jail during a lawful protest demonstration when she would otherwise have been free to exercise her U.S. Constitution 1st Amendment rights lawfully and in public as described above.

66. Furthermore, said imprisonment would chill a person of ordinary firmness from continuing to engage in said 1st Amendment activity.

67. The arrest, imprisonment and use of force by Defendant DOES 5-8 as described above, foreseeably and directly caused the Plaintiff to suffer discomfort, physical and emotional pain and distress, including humiliation, fear, frustration, and anger.

68. The false arrest, false imprisonment, excessive force, and identity concealment, and violation of U.S. Constitution 1st and 4th Amendment rights

described above in connection with the 6/17/12 ARREST were the intended, direct and foreseeable result of the Public Speech Suppression Policy of the Defendant CITY OF NEW YORK.

III. July 31, 2012 Arrest

Defendants CITY OF NEW YORK and
NYPD Officer MEDINA Shield 5939

69. On July 31, 2012, at and near the intersection of 147th Street and Broadway in the County and State of New York, Plaintiff was engaged in lawful activity, observing and video-recording the conduct of a uniformed police officer, Defendant NYPD Officer MEDINA Shield 5939.

70. Defendant MEDINA ordered Plaintiff to stop video-recording.

71. Defendant MEDINA physically harassed Plaintiff by pulling on her handbag.

72. Defendant MEDINA threatened to arrest Plaintiff.

73. Defendant MEDINA did arrest Plaintiff and placed her in handcuffs, without probable cause to believe she had committed any crime, as any properly-trained reasonable law enforcement officer would know under the totality of the circumstances.

74. Thereafter, Defendant MEDINA damaged property belonging to the Plaintiff, to wit, he tore a poster in her possession.

75. The poster was a work of art created by an artist for Plaintiff and given to Plaintiff by said artist.

76. The damage to Plaintiff's property, as described above, was a use of force in a manner and to a degree that was not reasonably necessary to investigate or prevent any crime, as any properly-trained reasonable law enforcement officer would know under the totality of the circumstances

77. Less than one hour thereafter, the police released Plaintiff, without filing any charges.

78. The arrest of Plaintiff and destruction of her property described above (the "7/31/12 ARREST") were intended to and did terminate the exercise by Plaintiff of her 1st Amendment right to observe and record the activities of the police.

79. The arrest of Plaintiff and destruction of her property during the 7/31/12 ARREST were in retaliation for the exercise by Plaintiff of her 1st Amendment right to observe and record the activities of the police, and were intended to discourage her from doing so ever again.

80. The arrest of Plaintiff and destruction of her property during the 7/31/12 ARREST were such as would chill a person of ordinary firmness

from continuing to engage in that activity.

81. The arrest of Plaintiff and destruction of her property by Defendant NYPD Officer MEDINA Shield 5939 as described above, foreseeably and directly caused the Plaintiff to suffer damage and injury to her personal property, personal discomfort, physical and emotional pain and distress, including humiliation, fear, frustration, and anger.

82. The false arrest, destruction of property, identity concealment, and violation of U.S. Constitution 1st and 4th Amendment rights described above in connection with the 7/31/12 ARREST were the intended, direct and foreseeable result of the Public Speech Suppression Policy of the Defendant CITY OF NEW YORK.

IV. CITY POLICY

83. Defendant CITY OF NEW YORK, through its preparation and issuance of both formal and informal orders and directives, and through its formal and informal monitoring of officer activities, both mandated and was aware of the false arrests of persons engaged in First Amendment activity in the public spaces of New York City, such as Plaintiff herein, and both caused, and failed to take sufficient steps to prevent, unlawful stops, searches, arrests, and

imprisonments, including that of Plaintiff as set forth herein.

84. Defendant CITY OF NEW YORK, through its preparation and issuance of both formal and informal orders and directives, and through its formal and informal monitoring of officer activities, both mandated and was aware of the Public Speech Suppression Policy, and failed to take sufficient steps to prevent, unlawful arrests and imprisonments, the use of excessive force, the destruction of private property, and the interference with citizens' rights under the U.S. Constitution 1st and 4th amendments, including those of the Plaintiff as set forth hereinabove.

85. Defendant CITY OF NEW YORK instituted and maintained a policy by NYPD whereby its officer employees would conceal their own identities and the identities of fellow officers directly participating in arrests and uses of force by

85 (A) ordering arrests, making arrests, and using force during arrests, without filing reports or leaving any public record of their own identity, or the identities of fellow officers participating directly in such arrests and uses of force;

85 (B) concealing one another's identities by obstructing, intimidating, and arresting bystanders, including Plaintiff, attempting to photograph or video-record arrests and uses of force by fellow officers; and

85 (C) concealing one another's identities by falsely claiming not to

remember the identities of involved officers, and by falsely claiming not to recognize fellow involved officers depicted in video and photographic records such as those attached as exhibits hereto.

86. The CITY OF NEW YORK was also aware, or should have also been aware of the failure of the NYPD to bring disciplinary charges against those officers who sanction or ignore unlawful stops, searches, arrests, imprisonments, use of excessive force, destruction of private property and interference with citizens' rights under the U.S. Constitution 1st and 4th Amendments, to punish officers that sanction and/or cover up such unlawful stops, searches, arrests, imprisonments, destruction of private property and interference with U.S. Constitution 1st and 4th Amendment rights, and to discourage others from doing so.

87. All of the aforementioned acts and omissions of defendants CITY OF NEW YORK, and the NYPD Officers identified by name or by video-recording and photograph and referred to as DOES in the preceding paragraphs, their agents, servants and employees (together the "Defendants"), were carried out under the color of state law.

88. All of the aforementioned acts of the Defendants deprived the Plaintiff of the rights, privileges and immunities guaranteed to citizens of the United States by the Constitution of the United States of America, and in violation of 42 U.S.C. §

1983, as explained herein below.

89. The acts complained of were carried out by the aforementioned Defendants with all the actual and/or apparent authority attendant to official police.

90. The acts complained of were carried out by the Defendants pursuant to the customs, usages, practices, procedures, and the rules maintained by CITY OF NEW YORK and the NYPD, all under the supervision of ranking officers of said NYPD.

91. The Defendants, collectively and individually, while acting under color of state law, engaged in conduct which constituted a custom, usage, practice, procedure or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.

FIRST CLAIM FOR RELIEF

42 U.S.C. § 1983/ First and Fourth Amendments

(Individual Officer Defendants)

92. PLAINTIFFS repeat and reallege the foregoing paragraphs as if the same were fully set forth herein.

93. The Defendants acted under pretense and color of state law and in

their individual and official capacities and within the scope of their employments as NYPD officers and employees.

94. By reason of unlawfully seizing, stopping, searching, damaging property, arresting, and imprisoning, and failing to intervene to prevent such unlawful conduct, when Plaintiff was lawfully engaged in U.S. Constitution 1st Amendment speech and assembly activities, the Defendants deprived Plaintiff of rights, remedies, privileges, and immunities guaranteed to every citizen of the United States, secured by 42 U.S.C. § 1983, including, but not limited to, rights guaranteed by the First Amendment to the United States Constitution to freedom of speech and association, and rights guaranteed by the Fourth Amendment to the United States Constitution to be free from unreasonable search, seizure, arrest or imprisonment without warrant or probable cause.

95. As a direct and proximate result of the above misconduct, Plaintiff was obstructed, prevented and discouraged from engaging in speech and expression and associating with her friends and fellow participants in the exercise of speech and expression; and deprived of her liberty; publicly embarrassed and humiliated; suffered pain and suffering, emotional injury, and was otherwise damaged and injured.

SECOND CLAIM FOR RELIEF

42 U.S.C. § 1983/ First and Fourth Amendments

(Municipal Defendant)

96. PLAINTIFFS repeat and reallege the foregoing paragraphs as if the same were fully set forth herein.

97. The Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure or rule maintained by the respective municipality/authority, that is, Defendant CITY OF NEW YORK and its NYPD, which is forbidden by the Constitution of the United States.

98. Defendant CITY OF NEW YORK, through the NYPD, and acting under the pretense and color of law, has permitted, tolerated and been deliberately indifferent to a pattern and practice of unlawful seizures, stops, searches, arrests, imprisonments, and damage to property, by NYPD officers, including the individual officer and employee Defendants. This widespread policy and tolerance of NYPD officers' unlawful conduct constitutes a municipal policy, practice or custom and led to the violation of Plaintiff's rights, and harm, injury, and damage to Plaintiff, as set forth hereinabove.

99. NYPD, on behalf of Defendant CITY OF NEW YORK, through its

officers and employees, including those identified by name in this First Amended Complaint, permitted, tolerated, sanctioned, and assisted in the unlawful acts giving rise to this First Amended Complaint, through a custom, practice and policy of withholding the identities of the DOE Defendant officers, who participated in the arrests of and uses of force against Plaintiff as set forth in this First Amended Complaint, from inclusion in police reports and court papers prepared before and during the criminal proceedings instituted against Plaintiff on false charges arising from her arrests, to protect them from liability for their wrongful actions.

100. By permitting, tolerating and sanctioning a persistent and widespread policy, practice and custom, pursuant to which citizens, including Plaintiff, were subjected to unlawful conduct as described hereinabove, Defendant CITY OF NEW YORK has deprived Plaintiff of rights, remedies, privileges, and immunities guaranteed to every citizen of the United States, secured by 42 U.S.C. § 1983, including but not limited to, rights guaranteed by the First and Fourth Amendments to the United States Constitution to be free from violation of her rights to free speech and association, and from search, arrest, use of force, destruction of property, or imprisonment without warrant or probable cause.

101. At all times material to this First Amended Complaint, Defendant CITY OF NEW YORK, acting through the NYPD, and through the individual officer and employee Defendants, maintained de facto policies, practices,

customs, and usages of failing to properly train, screen, supervise, or discipline employees, and of failing to inform the individual Defendants' supervisors of their need to train, screen, supervise or discipline said defendants. These policies, practices, customs, and usages were a direct and proximate cause of the unconstitutional conduct alleged herein.

102. The aforementioned customs, policies, usages, practices, procedures and rules maintained by Defendant CITY OF NEW YORK and by the NYPD included, but were not limited to the Public Speech Suppression Policy as set forth hereinabove, thereby displaying a deliberate indifference to disciplining supervisors, despite allegations of illegal and/or unconstitutional conduct such as Plaintiff suffered.

103. The foregoing customs, policies, usages, practices, procedures and rules maintained by Defendant CITY OF NEW YORK and the NYPD were the moving force behind the constitutional violations suffered by Plaintiff as alleged herein.

104. Additionally, the NYPD's deliberate indifference to proper training, supervising and/or disciplining of policy-making officials constituted explicit and/or tacit approval of their illegal and unconstitutional conduct.

105. The acts complained of were a direct and proximate result of the usages, practices, procedures and rules maintained by Defendant CITY OF

NEW YORK and the NYPD, which constituted deliberate indifference to the safety, well-being and constitutional rights of Plaintiff.

106. The foregoing customs, policies, usages, practices, procedures and rules maintained by Defendant CITY OF NEW YORK and the NYPD were the direct and proximate cause of the constitutional violations suffered by Plaintiff as alleged herein.

107. WHEREFORE, the PLAINTIFFS demand a jury trial and the following relief jointly and severally against all the defendants:

- a. Compensatory damages, in an amount to be determined by a jury;
- b. Punitive damages (except against Defendant CITY OF NEW YORK), in an amount to be determined by a jury;
- c. An award of plaintiffs' reasonable attorneys' fees and costs and expenses pursuant to 42 U.S.C. § 1988 and any other applicable statute or rule of law; and

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d. Such other and further relief as this court may deem appropriate and equitable.

Dated: New York, New York
February 10, 2015

/S/

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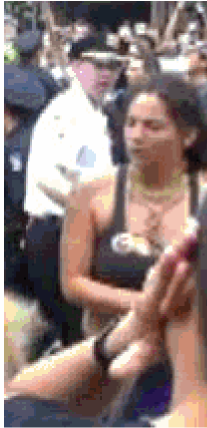
INDEX OF EXHIBITS ATTACHED TO FIRST AMENDED COMPLAINT

Exhibit 1 – video-recording of 9-24-11 Incident	DVD
Exhibit 2 – video-recording of 6-17-12 Incident	DVD
Exhibit 3 – photographs of DOE 1	33
Exhibit 4 – photographs of DOE 2	34, 35
Exhibit 5 – photographs of DOE 3	36
Exhibit 6 – photographs of DOE 4	37
Exhibit 7 – photographs of DOE 5	38, 39
Exhibit 8 – photographs of DOE 6	40
Exhibit 9 – photographs of DOE 7	41, 42
Exhibit 10 – photographs of DOE 8	43
Exhibit 11 – Suppressing Protest: Human Rights Violations in the U.S. Response to Occupy Wall Street, The Global Justice Clinic (NYU School of Law) and the Walter Leitner International Human Rights Clinic at the Leitner Center for International Law and Justice (Fordham Law School) (July 25, 2012)	DVD
Exhibit 12 – Amended Complaint in Peat v. City of New York, (12-cv-8230)	DVD
Exhibit 13 – Second Amended Complaint in Garcia v. Bloomberg, (11-cv-6957)	DVD

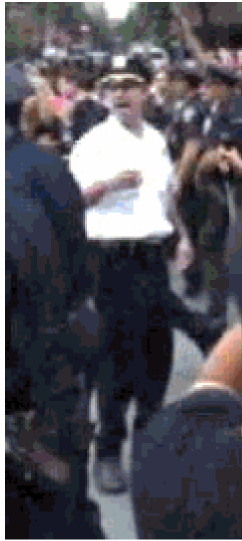
Exhibit 1 – video-recording of 9-24-11 Incident (DVD filed separately herewith)

Exhibit 2 – video-recording of 6-17-12 Incident (DVD filed separately herewith)

EXHIBIT 3 – DOE 1



A



B



C

EXHIBIT 4 – DOE 2



A



B



C



D



E

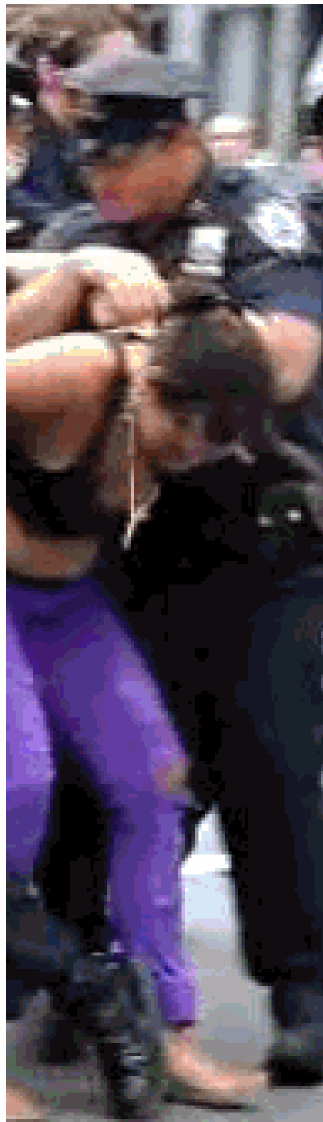


F

EXHIBIT 5 – DOE 3



A (WITH LEG TRIP)

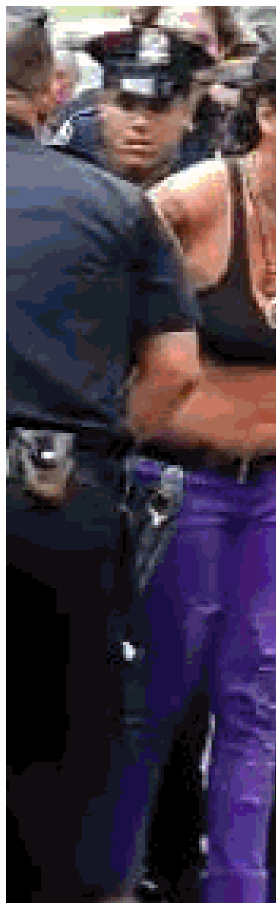


B (WITH LEG TRIP)

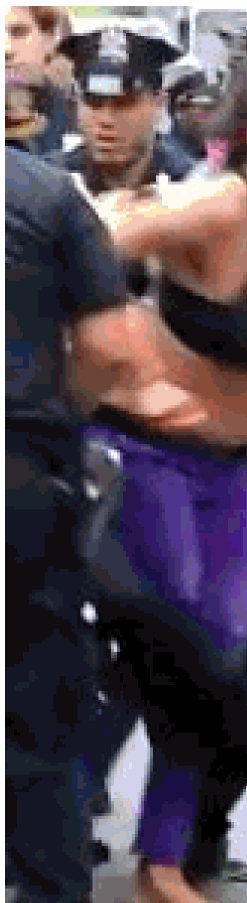


C

EXHIBIT 6 – DOE 4



A



B



C

EXHIBIT 7 – DOE 5



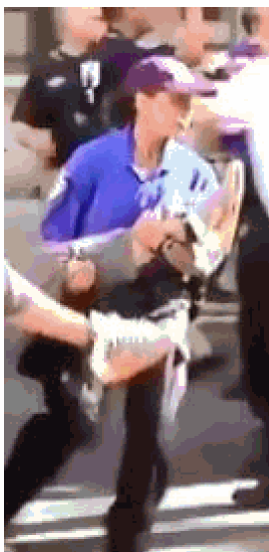
A



B



C



D



E



F



G



H

EXHIBIT 8 – DOE 6



A

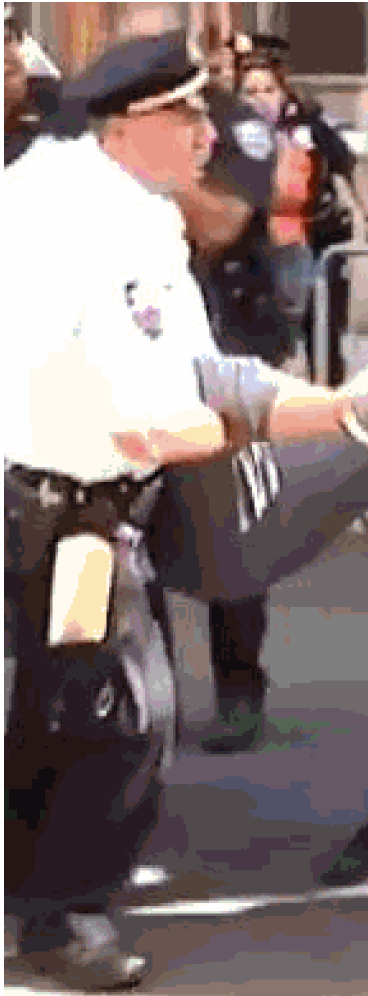


B



C

EXHIBIT 9 – DOE 7



A



B



C



D

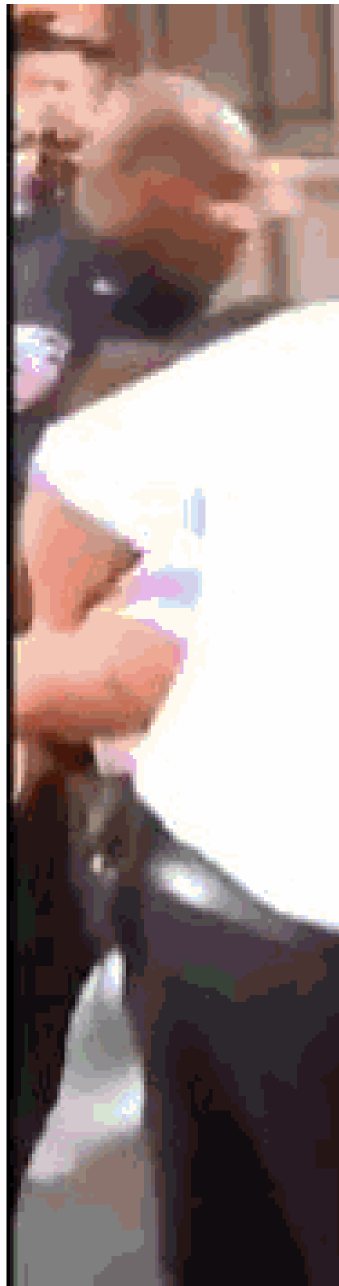
EXHIBIT 10 – DOE 8



A



B



C

EXHIBIT 11 – Suppressing Protest: Human Rights Violations in the U.S. Response to Occupy Wall Street, The Global Justice Clinic (NYU School of Law) and the Walter Leitner International Human Rights Clinic at the Leitner Center for International Law and Justice (Fordham Law School) (July 25, 2012) (DVD filed separately herewith)

EXHIBIT 12 – Amended Complaint in *Peat v. City of New York*,
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